

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT

CHRISTOPHER HANSON, Petitioner/Appellant/Husband-Respondent in divorce proceedings,

v.

SARAH HANSON, Respondent/Appellee./Wife-Petitioner in divorce proceedings

Case No. 2D2025-0681

Related Case: 2D2025-1936 (Appeal of Venue Denial)

Lower Tribunal Case No.: 24-DR-001150

MOTION FOR REHEARING, CLARIFICATION, ORAL ARGUMENTS, EN
BANC REVIEW, AND/OR WRITTEN OPINION

COMES NOW, Petitioner/Appellant/Husband, Christopher Hanson (Husband), pro se, pursuant to Florida Rule of Appellate Procedure 9.330 and 9.331, and respectfully moves this Court for rehearing, clarification, and/or issuance of a written opinion on its per curiam dismissal of September 12, 2025. In support thereof, Petitioner states:

I. TIMELINESS AND OVERVIEW

1. This motion is timely filed within 15 days of the Court's order, as required by Florida Rule of Appellate Procedure 9.330(a)(1). The Court's per curiam dismissal overlooks or misapprehends key points of law and fact presented in the Petition for Writ of Certiorari, Reply to Respondent's Response, and the record, warranting rehearing to prevent a miscarriage of justice.

Specifically, the Petition demonstrated that the trial court departed from the essential requirements of law by excusing Respondent/Appellee/Wife, Sarah Hanson (Wife), from complying with the mandatory disclosure and certificate of compliance requirements under Florida Family Law Rule of Procedure 12.285, resulting in irreparable harm not remediable on plenary appeal.

II. THE DISMISSAL OVERLOOKED THE TRIAL COURT'S DEPARTURE FROM THE ESSENTIAL REQUIREMENTS OF LAW AND THE GROWING DAMAGE TO THE CHILDREN

2. Husband acknowledges the seriousness of the accusations herein but submits that the direct tone is necessary and justified given the ongoing and escalating harm caused by Wife and her counsel's misconduct, and supported by judicial misconduct, as the unchecked corruption has caused completely unnecessary damage to this family for over a year.

3. Husband intends to exhaust every possible remedy the law offers to determine if justice is even possible in Florida in 2025. The facts, law, and required result are all quite straightforward to any observer with no basis for Wife's delay, obstruct, and conceal strategy supported by the Court and the attorneys in the 13TH Circuit. Yet, Mr. Davis and Judge Ayers are so comfortable and entitled in their corruption of the judicial process, they've been able to hold this family in hell for over a year

with no consequences for them, all while Wife actively weaponizes the children, desperate to create conflict as a basis for the outrageous and baseless lawfare motions wife and Mr. Davis filed specifically as Judge Ayers and Ms. Hodz (Husband's attorney at the time) conspired to strip him of representation on less than a day's notice. There is simply no way to get that across efficiently with due deference to the Court and proper decorum. However, it's impossible to object to any of the many facts that confirm all of the above as true, accurate, and a fair representations.

4. The Petition established that the trial court's orders of February 14, 2025 (Appendix, pp. 445-447), and March 5, 2025 (Appendix, pp. 457-465), departed from the essential requirements of law by failing to enforce Wife's compliance with Rule 12.285. Rule 12.285(j) requires a party to "swear or affirm under oath that the disclosure is complete, accurate, and in compliance with this rule, unless the party indicates otherwise, with specificity, in the certificate of compliance." Wife's certificates limited certification to "the last 12 months" (from October 2023 forward, after willfully violating a stipulated June 28, 2024, deadline), ignoring the statutorily mandated periods in Rule 12.285(d) and (j) for full transparency of marital assets and income (Petition, pp. 8-9, ¶¶ 26-28; Appendix, pp. 129-138, 206, ¶¶ 15-21).

5. This departure undermines the core purpose of Florida family law under Rule

12.010—to secure the just, speedy, and inexpensive determination of actions and provide a framework for fair resolution of disputes. By excusing Wife’s willful noncompliance—despite the stipulated June 28, 2024, deadline and the October 28, 2024, order requiring complete mandatory disclosure compliance within 10 days—the trial court contravened these rules, perpetuating concealment and delay (Petition, pp. 5-6, ¶¶ 10-13; Appendix, pp. 69-74, 150-152, 203-208). The Court overlooked that such excusal violates the plain language of the rules and legislative intent for broad, mandatory disclosures to ensure informed decision-making.

6. The dismissal frustrates resolution of the sole dispute since May 2024: Wife’s refusal to provide full financial discovery regarding concealed marital income. Despite Wife’s May 21, 2024, written confirmation to supplement disclosures (Appendix, pp. 590-593) and the October 28, 2024, order compelling compliance (Appendix, pp. 149-151; Transcript, Oct. 28, 2024 Hearing, Appendix, pp. 553-571), she failed to produce required records. Her subsequent “Certificates of Compliance” did not satisfy Rule 12.285(j) (Appendix, pp. 128-147), leading to over a year of escalating conflict, including child weaponization causing significant financial and welfare damages (Husband’s Response to Motion for Appointment of Guardian ad Litem, Docket #92; Appendix, pp. 445-447, 457-465).

7. Case law supports this as a departure warranting certiorari relief. In *Allstate v.*

Boecher, 733 So. 2d 993 (Fla. 1999), discovery rules are interpreted de novo, with broad access essential in family law for equitable results. The Petition cited Wargo v. Wargo, 669 So. 2d 1123 (Fla. 4th DCA 1996), where bias and rule enforcement failures justified review (Petition, p. 17, ¶ 72). The dismissal misapprehends this, as the trial court's actions actively shield noncompliance, complicating material injury analysis.

8. Husband incorporates facts, evidence, and arguments from Related Case No. 2D2025-1936 (Appeal of Venue Denial), where Wife's opposition to venue transfer (citing "protecting the kids") while pursuing a prolonged constitutional appeal process is inconsistent, suggesting intent to obstruct transparency. The Court overlooked how these omissions concede the Petition's core arguments.

III. THE COURT MISAPPREHENDED THE IRREPARABLE HARM NOT REMEDIABLE ON APPEAL

9. The Petition demonstrated irreparable harm through ongoing concealment of marital assets, denying Husband a fair process and prolonging conflict detrimental to the parties and children. This harm is not remediable on plenary appeal, as delays allow potential asset dissipation (Reeves v. Fleetwood Homes of Fla., Inc., 889 So. 2d 812 (Fla. 2004)) and perpetuate litigation, stress, and expense (Petition, pp. 18-19, ¶¶ 63-64, 104-105). The Court overlooked the pattern of discovery violations and apparent ethical misconduct by Wife's counsel, Mr. Davis—

including strategic trickling of documents (Petition, p. 9, ¶ 27), leveraging child-related issues for harassment (Reply, pp. 9-10, ¶¶ 33-39), and over a dozen violations (Petition, p. 24, ¶ 87)—all designed to conceal information central since May 2024.

10. This apparently biased process, including the trial court’s suppression of evidence of misconduct (e.g., Mr. Davis’s absence from hearings, Appendix, pp. 325-347) and refusal to address the core discovery issue, denies due process under Article V, Section 4(b)(3) of the Florida Constitution and Rule 9.100 (Petition, pp. 11-13, ¶¶ 37-42; Reply, pp. 10-11, ¶¶ 48-49). The harm extends to the children’s welfare, as continued conflict in a potentially biased forum hinders effective co-parenting and causes emotional stress—facts the Response dismisses as “self-proclamation of victimization” without evidence (Response, p. 15).

11. Wife’s efforts to inject the children via a Guardian ad Litem (GAL), without record basis, exemplify apparent unethical weaponization, prioritizing obstruction over family healing. The dismissal fails to account for these facts, satisfying the “material injury” prong, as litigation has spanned over a year with the core discovery issue unresolved, exploding into unnecessary motions and ethical breaches.

12. Ongoing efforts in the venue appeal (Case No. 2D2025-1936), including the trial court’s stay of proceedings (granted August 1, 2025) and Wife’s baseless

“emergency” motion to lift it (filed August 28, 2025; opposed September 3, 2025), underscore irreparable harm. Wife’s filings lack any emergency or child welfare basis, misrepresenting history to portray herself as child-focused while omitting her and Mr. Davis’s strategy to conceal assets at the children’s expense (Initial Brief, ¶¶ 5-12, 40-54, 66-70, 84-86; Appendix, pp. 93-111).

IV. CLARIFICATION, WRITTEN OPINION, AND ADDITIONAL RELIEF ARE NECESSARY

13. If the Court intended the dismissal as a denial on the merits without opinion, Husband requests clarification under Rule 9.330(a)(2)(B). Alternatively, Husband moves for a written opinion to address overlooked points, as the issues involve significant departures from family law principles affecting transparency and fairness. A written opinion would provide guidance on enforcing Rule 12.285 in cases of willful noncompliance and apparent bias, preventing similar miscarriages of justice (*Perlow v. Berg-Perlow*, 875 So. 2d 383, 389 (Fla. 2004), noting written orders ensure meaningful review and guide future litigants by clarifying application of rules in complex family law disputes).

14. Husband respectfully requests en banc review pursuant to Rule 9.331, as the case involves a question of exceptional importance regarding the enforcement of mandatory discovery rules and apparent bias in the 13th Circuit in what has become an enormous problem for many families in the Tampa Bay area. The facts

of this case and the related case on venue, 2D2025-1936 (Appeal of Venue Denial) provide such an obvious example of attorney and judicial misconduct that it truly destroys any confidence one can have in the judiciary. Husband has waived any attorney client privilege making the level of bias and corruption readily observable to anyone who cares to see. Husband is a long time attorney with no history of ethical violations. His allegations are consistent, well supported by the record, and unrefuted by Wife. The Court should take the opportunity to fully address this problem before it hurts more Floridians.

15. The Second DCA should grant en banc review on this and/or the related case to demonstrate to Florida citizens, attorneys, and judges, that such corrupt and unfair activity will no longer be tolerated.

16. Absent rehearing or clarification, the dismissal condones the trial court's excusal of mandatory rules, perpetuating harm and undermining public confidence in the judicial system.

WHEREFORE, Petitioner respectfully requests that this Court grant rehearing, vacate the dismissal, grant the Petition for Writ of Certiorari, grant oral arguments, issue clarification or a written opinion, grant en banc review, remand with instructions to enforce Rule 12.285 compliance, expedite consideration due to ongoing harm to the children, overrule any discovery objections Wife may have

regarding financial discovery, and grant any other relief deemed just and proper.

DATED this 26th day of September, 2025.

Respectfully submitted,

/s/ Christopher Hanson

Christopher Hanson, Pro Se

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished via e-mail to Sarah S. Hanson, Esq., at sahanson@aainsco.com, and all others on the e, on this 25th day of September, 2025.

/s/ Christopher Hanson

Christopher Hanson

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this motion complies with Florida Rule of Appellate Procedure 9.100 and the Second District Court of Appeal's formatting standards. It is submitted in Times New Roman, 14-point font, double-spaced, with 1-inch margins, and does not exceed applicable page or word limits. /s/ Christopher Hanson

/s/Christopher Hanson

Christopher Hanson